

Amending Act of 1781

In a bid to rectify the defects of the Regulating Act of 1773, the British Parliament passed the Amending Act of 1781, also known as the Act of Settlement.

The features of this Act were as follows:

1. It exempted the Governor-General and the Council from the jurisdiction of the Supreme Court for the acts carried out by them in their official capacity. Similarly, it also exempted the servants of the Company from the jurisdiction of the Supreme Court for their official actions.

2. It excluded the revenue matters and the matters arising in the collection of revenue from the jurisdiction of the Supreme Court.

3. It provided that the Supreme Court was to have jurisdiction over all the inhabitants of Calcutta. It also required the Court to administer the personal law of the defendants i.e., Hindus were to be tried according to the Hindu law and Muslims were to be tried according to the Mohammedan law.

4. It laid down that the appeals from the Provincial Courts could be taken to the Governor-General-in-Council and not to the Supreme Court.

5. It empowered the Governor-General-in-Council to frame regulations for the Provincial Courts and Councils.



Pitt's India Act of 1784

The next important act was the Pitt's India Act[2] of 1784.

The features of this Act were as follows:

1. It distinguished between the commercial and political functions of the Company.

2. It allowed the Court of Directors to manage the commercial affairs, but created a new body called the Board of Control to manage the political affairs. Thus, it established a system of double government.

3. It empowered the Board of Control to supervise and direct all operations of the civil and military government or revenues of the British possessions in India.

Thus, the act was significant for two reasons: first, the Company's territories in India were for the first time called the 'British possessions in India'; and second, the British Government was given the supreme control over Company's affairs and its administration in India.



Act of 1786

In 1786, Lord Cornwallis was appointed as the Governor-General of Bengal. He placed two demands to accept that post, viz.,